



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

JUN 27 2005

DOT-E 14192
(SECOND REVISION)

EXPIRATION DATE: October 31, 2005

1. GRANTEE: Huntsman Corporation
The Woodlands, TX
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-way transportation in commerce of certain oxidizing solid, n.o.s. in non-DOT specification bulk and non-bulk packages for the purpose of relocating a research and development laboratory. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.212 and 173.240 in that non-DOT specification packagings are not authorized except as specified.
5. BASIS: This emergency exemption is based on the application of Huntsman Corporation dated May 6, 2005, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss and additional information dated June 17, 2005.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Oxidizing solid, n.o.s.	5.1	UN1479	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are non-DOT specification non-bulk and bulk packages with all openings sealed with either a threaded cap or a blind flange. Additionally, the packagings must conform to the following requirements:

(1) Non-DOT specification non-bulk combination package. Non-bulk combination package consists of a stainless steel inner packaging manufactured in accordance with Heat Transfer Systems, Inc. Drawing 11645 dated August 6, 1990 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA) overpacked in a non-DOT specification wooden box. The package will contain approximately 200 pounds of the material listed in paragraph 6 above. The combination package has approximate dimensions of 4'x4'x8'.

(2) Non-DOT specification bulk package. Bulk package is fabricated in accordance with Huntsman drawings Project 30761 dated July 29, 2002 and on file with OHMEA and is approximately 12' x 14' x 28'. The package will contain approximately 1,000 pounds of the material listed in paragraph 6 above and will be secured in a protective metal framework for transportation.

b. OPERATIONAL CONTROLS -

(1) Prior to transportation, all materials must be in a solid state with no free liquid.

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(2) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the packages are not fitted with a pressure relief device and provide appropriate guidance for exposure to fire.

(3) The shipment of the non-bulk packages is only authorized between facilities owned or leased by Huntsman located in St. Louis, MO and Austin, TX and continue to the facility located in The Woodlands, TX.

(4) The shipment of the bulk package is only authorized between facilities owned or leased by Huntsman located in Austin, TX and The Woodlands, TX.

(5) The shipments authorized under the terms of this exemption must be made by contract carrier under the exclusive use of Huntsman Corporation.

(6) Packages must be securely blocked and braced on the motor vehicle.

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.:



fr Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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DATE

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: PHH-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: DBurger:dl